

FEDERAL MARITIME COMMISSION

HANGZHOU QIANWANG DRESS CO.
LTD.,

Complainant,

v.

RDD FREIGHT INTERNATIONAL, INC.,

Respondent.

Docket No. 17-02

COMPLAINANT'S OPPOSITION TO RESPONDENT'S MOTION TO COMPEL

Complainant hereby responds to Respondent's Motion to Compel as follows:

DOCUMENT REQUESTS

2. To the extent not encompassed in other requests herein, all correspondence with the shippers, the consignees, and/or the owners of the Cargo regarding the Cargo carried under the aforesaid bills of lading.

HQD'S RESPONSE TO REQUEST NO. 2: Subject to and without waiving the foregoing general and specific objections, Complainant will produce relevant, responsive and non-privileged documents, to the extent any exist within its possession, custody, and control and can be located after a reasonable search. Based on its search to date, Complainant has not identified any documents responsive to this Request.

RESPONDENT'S ALLEGED REASON TO COMPEL: For its defense and counterclaim, Respondent needs the identities of persons and their correspondence involved in this process from shipping to delivery as well as documentation leading to some disclosure why the Consignee was able to take delivery of goods without original bills of lading. RDD will also rely on other shipping and sales documents in HQD's possession for proving its counterclaim that HQD teamed with someone in the US in a scheme to defraud.

COMPLAINANT'S RESPONSE: We did another search for documents and we did not find anything else. Our communication between the consignee and us was verbal. We already submitted all the documents we could find. This included all copies of shipping documents and invoices and bill of lading that we had on hand.

5. To the extent not encompassed in other requests herein, all documents that concern or relate to all investigations or inspections made on or on behalf of consignee or you of the alleged failure to receive payments for the Cargo shipped under the aforesaid bills of lading.

HQD'S RESPONSE TO REQUEST NO. 5: Subject to and without waiving the foregoing general and specific objections, Complainant will produce relevant, responsive and non-privileged documents, to the extent any exist within its possession, custody, and control and can be located after a reasonable search. Based on its search to date, Complainant has not identified any documents responsive to this Request.

RESPONDENT's ALLEGED REASON TO COMPEL: For its defense and counterclaim, Respondent needs certain documentation or reports on HQD's investigation leading to some discovery of the cause of taking delivery of goods without original bills of lading or other shipping documents. This information may also reveal HQD's efforts, if any, in mitigating its alleged damages.

COMPLAINANT's RESPONSE: No investigation was done since your client willingly released the cargo without my original bill of lading. As standard procedure goes, your client needs to wait for my original bill of lading prior to sending your bill of lading to the steamship line. Rdd did not wait but violated the law by sending over their obl copy without my original in hand allowing the consignee to pick up the merchandise without paying for it. The investigation needs to be done by your client regarding his company's internal procedures on how they allowed this to happen.

6. To the extent not encompassed in other requests herein, all documents that concern any attempts to obtain payment, the ultimate disposition and/or destruction of the Cargo referenced in the above requests.

HQD'S RESPONSE TO REQUEST NO. 6: Subject to and without waiving the foregoing general and specific objections, Complainant will produce relevant, responsive and non-privileged documents, to the extent any exist within its possession, custody, and control and can be located after a reasonable search. Based on its search to date, Complainant has not identified any documents responsive to this Request.

RESPONDENT's ALLEGED REASON TO COMPEL: For its defense and counterclaim, Respondent needs to find out if the Complainant engaged in any efforts in obtaining payment from its consignee SWAK Kids or others. This information may also reveal HQD's efforts, if any, in mitigating its alleged damages.

COMPLAINANT's RESPONSE: We attempted to contact the customer however they refused to take our phone calls. During one of my following trips to New York, I visited the Consignees place of business however the company was no longer at the location listed as the place of business.

INTERROGATORIES

1. Identify all persons with knowledge concerning the Incident and the events referenced in the pleadings filed in the above-captioned actions.

HQD'S RESPONSE TO INTERROGATORY NO. 1: Subject to and without waiving the foregoing General and specific objections, Complainant responds as follows: Xingliang Qian has knowledge regarding the events referenced in the pleadings. Upon information and belief, Complainant also believes that Respondent's employees, including but not limited to an employee named "Yuen", have knowledge of the events.

RESPONDENT's ALLEGED REASON TO COMPEL: For its defense and counterclaim, Respondent needs certain the identities of persons with knowledge of what transpired between the Shipper, Ocean Carrier and the Consignee so that any fraudulent scheme maybe revealed - leading to some discovery of the cause of taking delivery of goods without original bills of lading or other shipping documents.

COMPLAINANT's RESPONSE: we already provided the names of the people who will be called on as witnesses but in the interest of completeness, here are the names of the people who may have knowledge of the case

Yiwen-RDD employee

3. Identify all evidence that you will present at trial.

HQD'S RESPONSE TO INTERROGATORY NO. 3: Subject to and without waiving the foregoing General and specific objections, Complainant responds that information responsive to this interrogatory may be derived or ascertained from a review of Complainant's business records with substantially the same effort as would be incurred by Complainant, as provided in Rule 502.205(d), 2nd Complainant refers Respondent to the documents produced in response to Respondent's First Request for Production of Documents.

RESPONDENT's ALLEGED REASON TO COMPEL: Request for the opponent's proffered evidence is routine in litigation. For its defense and counterclaim, Respondent needs to find out from HQD's side what kind of documentary proof and/or testimony it will rely on to prove its case.

COMPLAINANT's RESPONSE: we have provided all we plan to rely on

4. State the name and address of any person who has made a statement regarding the subject matter of the above-captioned actions and provide a summary of the statement, or attach a copy, if written.

HQD'S RESPONSE TO INTERROGATORY NO. 4: Subject to and without waiving for foregoing General and specific objections, Complainant states that it is not aware of any such statements as it understands this interrogatory.

RESPONDENT's ALLEGED REASON TO COMPEL: For its defense and counterclaim, Respondent needs certain documentation or reports on HQD's investigation leading to some discovery of the cause of taking delivery of goods without original bills of lading or other shipping documents.

COMPLAINANT's RESPONSE: We are not aware of any statements therefore we are not able to provide anything else

6. At least thirty (30) days prior to the discovery cutoff date, state each contention that you will assert in support of the Complaint, and in defense to the counterclaims as well as in support of any affirmative defenses alleged in, and identify the specific evidence to be relied upon at trial to support each of the elements of the claim or the defense.

HQD'S OBJECTIONS AND RESPONSES TO INTERROGATORY NO. 6: Complainant incorporates by reference each of the Comments and General Objections stated above. By the express language of this interrogatory, no response is due currently. Complainant reserves its right to object and respond to this Interrogatory later.

RESPONDENT's ALLEGED REASON TO COMPEL: As a routine demand in discovery process, Respondent must disclose all evidence it will rely on to prove every element of its Complaint. Respondent needs such evidence to prepare its defense and to prove its counterclaim at trial.

COMPLAINANT's RESPONSE: We intend to respond once discovery is completed

CONCLUSION

For the foregoing reasons, Respondent's motion to compel should be denied in its entirety.

Dated: New York, New York
April 25, 2018

Respectfully submitted,

Xing Wang Dean

On Behalf of Complainant